

Overseas Transfer Agreement

This agreement is entered into between Coforge Limited, a company incorporated under the Companies Act, 1956, having its registered office at Plot No. 13, Udyog Vihar, Phase-IV, Sector-18, Gurugram, Palam Road, Gurgaon- 122015, Haryana, India (hereinafter referred to as "The Company" which expression shall include its successors in interest and assigns) of the First Part **Mr. Kashyap Upadhyay** currently working as **TECHNICAL ARCHITECT**, and bearing Employee Code **00106400**, having his/her current address as **Mont Vert Seville Datta Mandir Road, Wakad Pune Maharashtra 411057** and permanent address **Mont Vert Seville Datta Mandir Road, Wakad Pune Maharashtra 411057** address hereinafter referred to "The Employee")

WHEREAS the Company is involved in the business of, *inter alia*, skill development, to run and conduct bureau for computers and to design, develop, programs, software exports and consultancy.

AND WHEREAS to effectively provide such services, it is a part of the Company's business to depute related professionals to work with various subsidiaries of the Company outside India (hereinafter referred to as “**Group Companies**”) and also to perform, *inter alia*, software consultancy at the Group Companies or work on projects with client organizations assigned by the Group Companies.

AND WHEREAS at the request of the Employee, the Company has agreed to depute the Employee for a period of 36 Months to take up temporary employment with the Group Company/Client/Client Organization starting from **18 AUGUST 2026** or actual transfer date, whichever is later.

The employee is also aware that such an opportunity, if granted, would considerably enhance his/her career prospects, and is desirous of enhancing the same.

AGREEMENT

1. Assignment

Based on the employee's willingness, the Company will facilitate overseas assignments through its Group Companies, which will secure contracts with client organizations. The Employee will be assigned a Deputation Period, which may be extended with prior written notice from the Company. The Company, either directly or via its Group Company, will handle visa/work permit extension at its cost and assure authorities that the Employee will return to India post-assignment to continue their employment with the Company. The Employee is prohibited from seeking sponsorships from external parties without prior written consent. Upon arrival in the assigned country, the Employee will work for the Group Company but will retain a lien on their parent company, ensuring that their employment status remains unaffected throughout the Deputation Period.

2. Terms of Employment

The company is bound by time commitments to its clients to complete projects for the clients. The employee, therefore, agrees to honor any such time commitments, should he/she be assigned to projects for the company's clients. The employee further agrees not to abandon any project prior to its completion and to perform his/her tasks in a manner ensuring that no disruption of work takes place.

During the Deputation Period, the Employee shall:

- Not return to India without obtaining the permission or authorization of the Company/LHR.
- Refrain from taking employment or obtaining work with any other person, firm, or company, whether in India or elsewhere, without the Company's permission.
- Refrain from absenting him/herself from work without authorization.
- Adhere to the rules and regulations of the Company including but not limited to the Code of Conduct.
- Unless authorized the Employee will not make any representation, contract, or commitment for and on behalf of the Company without prior written permission.

3. Salary

The Company shall pay to the Employee a salary and other benefits as shall be agreed between the Employee and the Group Company under the Reassignment Letter.

4. Non-Conflicting Agreement

The Employee ensures their work does not violate any prior agreements and agrees not to disclose or encourage the use of proprietary information from previous employers. They must also inform the Company of any existing confidentiality or invention agreements they have previously signed.

5. Company Property

Confidential information belongs exclusively to the Company. The Employee must disclose any such information they develop and return all company property upon departure, providing a signed confirmation. They must also refrain from representing any continued association with the Company.

6. Non-Solicitation & Non-Compete

The Employee may not recruit Company employees or solicit clients of the Company or Group Companies during the term of this assignment or one year post-assignment.

7. Intellectual Property

The Employee must disclose relevant inventions and creative works. The Company retains ownership of qualifying inventions and has discretion over their use. The Employee appoints the Company as their Attorney for necessary actions and must assist in confirming ownership rights.

8. Confidentiality

Each party shall abide by the confidentiality obligations as specified under employment agreement between the Employee and the Company.

9. Payment of India Tax on Global Income

The Employee acknowledges the applicability of the global tax policy and their tax liability if determined as Resident (ROR) on the last day of the financial year. The Employee undertakes to pay the tax obligation amount calculated as per Indian Income Tax provisions immediately upon receiving the final tax working for the Financial Year. If there is any delay in making the payment, the overseas branch/entity can deduct the due amount from the Employee's monthly salary.

10. Breach

That in the event of the Employee committing any manner of breach of any of the terms and conditions contained hereinabove the employee shall be liable to the company for damages as enumerated in Clause 11.

11. Liability

- a. The Company may, at its sole discretion, provide reasonable support to the Employee in relation to immigration, visa sponsorship, relocation, or work authorization matters. However it does not constitute a guarantee of visa approval, immigration success, or compliance outcomes.

To the fullest extent permitted by applicable law, the Company shall not be liable for any loss, damage, cost, or consequence arising from:

- (i) the denial, delay, suspension, or cancellation of any visa or immigration status by government authorities;
 - (ii) any failure of the Employee to provide timely, complete, or accurate documentation required for immigration processing;
 - (iii) changes in immigration laws, policies, or procedures that affect the Employee's eligibility or status.
- b. A statement of account of the money expended or advanced or incurred or paid by the Company, or the Group Companies for and on behalf of the Employee, when signed by any officer of the Company, shall constitute conclusive proof of the payment thereof and shall be binding upon the Employee.
 - c. In any event, the Company's total liability in connection with this Agreement shall be limited to reimbursable documented expenses (if any) actually incurred by the Employee and pre-approved by the Company. Nothing in this subclause shall exclude or limit the Company's liability for any mandatory obligations under applicable employment or immigration law, or for any fraudulent misrepresentation or willful misconduct.
 - d. Company shall not be liable in connection with Contract for a) any indirect, consequential, incidental, punitive, exemplary or special losses, whether arising in contract, tort or otherwise; b) loss of data/programs, loss of profits or revenue, loss of anticipated savings or loss of goodwill, even if such losses or damages were reasonably foreseeable or where a Party has been advised of the possibility of such losses or damages.
 - e. Notwithstanding anything to the contrary herein the Employee agrees to indemnify, defend, and hold harmless Coforge its affiliates, officers, directors, employees, and agents from and against any and all claims, losses, liabilities, damages, fines, penalties, costs, and expenses (including legal fees) arising out of or related to any misrepresentation, breach of this Agreement, or non-compliance with immigration, tax, or employment laws in connection with the transfer or relocation. In addition, the Company reserves the right to recover from the Employee any expenses it incurs as a result of such breach or non-compliance, including amounts paid to third parties or government authorities.

12. Termination

The Company may for just cause terminate the Employee's Deputation Period without any liability to the Employee other than for salary earned and payable through the date of termination. In the event that the Deputation Period is terminated before completion in accordance with this paragraph, the Employee will continue to remain in the employment of the Company, unless terminated under the terms of the Employee's agreement with the Company. "Just cause", as used herein, shall mean a material breach by the Employee of the terms the secrecy and confidentiality terms of this Agreement or any other breach which in the reasonable judgment of the officers of the Company is materially detrimental to the Company.

13. Reasonability of Restriction

The employee has carefully read and considered the provisions of Sections 1 to 12 above and, having done so, acknowledges that the restrictions set forth in such sections are fair and reasonable and are reasonably required for the protection of the interests of the company and its business, officers, directors and the employees.

14. Governing Law

The construction and interpretation of this Agreement shall at all times and in all respects be governed by the laws of **CANADA**.

15. Jurisdiction

Either party shall have the right to bring any legal proceedings arising out of any claim or dispute based on this agreement in the exclusive jurisdiction of courts at **CANADA**.

16. Modification

This Agreement may not be modified orally and may be modified only in writing signed by both parties.

17. Non-assignment

This agreement may not be assigned by the Employee to any person. Any attempted assignment shall be void.

18. Notice

All communication between the Employee and the Company shall be deemed to have been effectively served if addressed in writing and sent by certified or registered mail, return receipt requested, or first-class postage prepaid to the Employee's address as shown on the Company's records and in the case if the Company to its registered office.

IN WITNESS WHEREOF the parties hereto set unto this deed their hands on the say and year first hereinabove mentioned.

Employee

Authorized Signatory

(Signature) _____



Date: _____

Date : 11 AUGUST 2026